APPSC GROUP 1 / GROUP 2 — INDIAN POLITY

Volume 2: Union and State Government — Executive, Parliament, State Legislature, Judiciary, Emergency

President and Vice-President · Prime Minister and Council · Parliament and how a Bill becomes law · Budget, motions, committees · Governor, Chief Minister, State Legislature · Supreme Court, High Courts · PIL, judicial review, activism · Emergency

READ THIS FIRST

How to use this volume:
1. Colours: **Blue** = simple explanation · **Orange** = Andhra Pradesh / Telangana link · **Red** = exam traps · **Green** = 2-minute revision · **Purple** = self-test · **Yellow** = LATEST (2024–26; verify before the exam).
2. Idea: India has a parliamentary system in which the Union and States each have the same three organs — Executive (runs), Legislature (makes laws), Judiciary (decides). Learn each organ for the Centre and then the matching organ for the State; the State version is a copy with small differences.
3. Syllabus: Group 1 Prelims Paper I Part B items on Union and States, Parliament and State Legislatures (structure, powers, privileges); Mains Paper III A1, A2, A4, A5; Group 2 Paper I Section B (legislative, executive, judiciary; judicial review and activism). Volume 1 is the Constitution; Volume 3 federalism and local government.
4. Plan: 10 chapters in 10 days; revise green boxes on day 4 and day 11; then Polity Mock Test 2.

Syllabus map

Syllabus item	Chapter
Union executive: President, Vice-President, Prime Minister, Council of Ministers	Ch 1–2
Parliament: composition, powers, privileges, committees, Bills, Budget	Ch 3–4
State executive and State Legislature	Ch 5–6
Judiciary: Supreme Court, High Courts, subordinate courts, tribunals	Ch 7–8
PIL, judicial review, judicial activism, judicial reforms	Ch 9
Emergency provisions	Ch 10

CHAPTER 1 — The President and Vice-President

Articles 52–73 (Part V, Chapter I)

IN SIMPLE WORDS (what / how / why)

Start from the idea of two Heads. In a parliamentary system the **head of State** (President: a constitutional, ceremonial head who 'reigns') is separate from the **head of Government** (Prime Minister: the real executive who 'rules'). All executive action is taken 'in the name of the President' (Art 77) but on the advice of the Council of Ministers headed by the PM (Art 74). **Why indirect election?** So that the President cannot claim a direct popular mandate to rival Parliament.

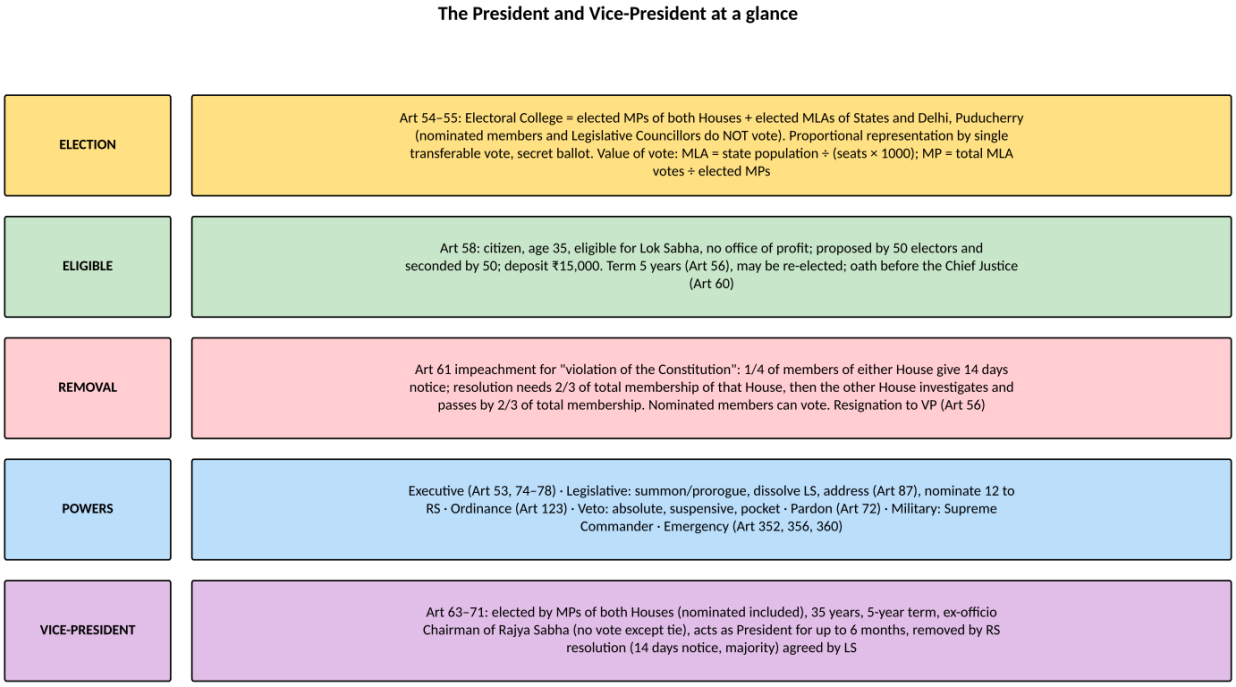


Figure 1: President and Vice-President at a glance

Powers of the President in detail

Power	Content
Ordinance (Art 123)	Issued when Parliament is **not in session**, only if the President is satisfied that immediate action is needed; has the same force as an Act; must be laid before Parliament and **lapses 6 weeks after reassembly** (or earlier if both Houses disapprove). **D.C. Wadhwa 1987:** repeated re-promulgation is a fraud on the Constitution; **Krishna Kumar Singh 2017:** ordinance-making is not an absolute power. Governor: Art 213.
Pardoning (Art 72)	**Pardon** (removes sentence and conviction), **Reprieve** (temporary stay, e.g. of death sentence), **Respite** (lesser punishment due to special cause, e.g. pregnancy), **Remission** (reduces the amount, not nature), **Commutation** (changes the nature). Covers court-martial sentences and **death sentences** (Governor's power under Art 161 does not). **Kehar Singh 1989:** the President may re-examine evidence; **Epuru Sudhakar 2006:** pardon is open to limited judicial review.
Veto over Bills (Art 111)	**Absolute** (withhold assent: Private Member's Bill; or when Cabinet resigns), **Suspensive** (return a Bill once; Parliament can repass; **not** Money Bill or Constitution Amendment), **Pocket** (no time limit to decide: **Indian Post Office Bill 1986, Zail Singh**). President has **no qualified veto** (that is the US system).
Discretion in practice	Choosing PM in a **hung Lok Sabha**; dismissing a Council that has lost the majority; returning a Bill once (Art 74: can return advice once; second advice is binding after the **44th Amdt**). **Shamsher Singh 1974:** President is bound by Cabinet advice.
Special powers	Nominates **12 members to Rajya Sabha**; appoints Governors, judges, CAG, Election Commissioners, Attorney General, Finance Commission; sends Reference to the Supreme Court (Art 143); calls the Joint Sitting (Art 108).

President's election and removal: points that are asked again and again

Point	Fact
Electoral College (Art 54)	Elected MPs + elected MLAs of States, **Delhi and Puducherry** (70th Amdt). **Nominated MPs and Legislative Council members do not vote.** Total value of MLA votes = total value of MP votes (equal weight for the States and the Union, 50:50).
Value of a vote	MLA = population (1971 census, frozen till 2026) ÷ (elected MLAs × 1000). MP = total value of all MLA votes ÷ number of elected MPs. Winner needs the **quota = (valid votes ÷ 2) + 1**. **Disputes:** only the Supreme Court (Art 71).
Vacancy (Art 62)	Election **before expiry** of the term; if vacant by death or resignation, new election **within 6 months**; VP acts as President; if VP not available, **Chief Justice of India** (Hidayatullah acted 1969).
Impeachment	Only for **'violation of the Constitution'**; **no President has been impeached so far.** Unlike judges, the elected and nominated members of both Houses can take part.

ANDHRA PRADESH LINK

Neelam Sanjiva Reddy (from Anantapur, Andhra Pradesh) is the **only President elected unopposed (1977, 6th President)** and the first Speaker of Lok Sabha from AP; **V.V. Giri** (born in Berhampur, Odisha, of Telugu parentage) was President 1969–74 and the only one elected after a close contest on second preference votes. **Sarvepalli Radhakrishnan** (born in Tiruttani, then in Madras Presidency, Telugu-speaking family) was VP 1952–62 and President 1962–67 — **Teachers' Day, 5 September. P.V.**

Point	Fact
Narasimha Rao (Telangana) was PM 1991–96. **M. Venkaiah Naidu** (Nellore) was the 13th VP (2017–22).	

LATEST (verify before the exam)

President: Droupadi Murmu (15th President, from 25 July 2022; first tribal woman). **Vice-President: C.P. Radhakrishnan** (15th VP, elected September 2025 after Jagdeep Dhankhar resigned in July 2025 — the VP resigned mid-term, a rare event). **Presidential Reference on assent to Bills (Art 143), opinion of 20 Nov 2025** — see Chapter 5.

EXAM TRAPS

Pardon power: the Governor cannot pardon death sentences (Art 161); the President can (Art 72). Impeachment needs 2/3 of TOTAL membership, but VP's removal needs only a majority of the RS (effective majority = majority of all then members) + simple majority in LS. The President can be elected by MPs and MLAs of states, but MLC and nominated MPs are excluded. The VP is elected by ALL MPs including nominated, but NOT by MLAs. Oath of the President is administered by the CJI (Art 60), of the VP by the President (Art 69).

2-MINUTE REVISION

Head of State vs Head of Government · Art 54–55 election (PR-STV, secret) · 35 yrs, 5-year term · 123 ordinance (6 weeks) · 72 pardon (5 forms) · veto: absolute, suspensive, pocket · 61 impeachment (14 days, 1/4, 2/3) · VP: Art 63, RS chairman, acts up to 6 months.

CHAPTER 2 — Prime Minister, Council of Ministers and Cabinet

Articles 74–78 and 88

IN SIMPLE WORDS (what / how / why)

The Council of Ministers is the real government. Art 74: 'There shall be a Council of Ministers headed by the Prime Minister to aid and advise the President.' The **Cabinet** (about 25 senior ministers) is the inner core that takes decisions; the Council also includes **Ministers of State** and **Deputy Ministers**. The principle is **collective responsibility** (Art 75(3)): the whole Council sinks or swims together before the Lok Sabha — if a no-confidence motion passes, the whole government resigns.

Point	Fact
Appointment (Art 75)	President appoints the **PM** (leader of the majority in Lok Sabha) and other ministers on the PM's advice. PM may be from Rajya Sabha (Indira Gandhi, Deve Gowda, I.K. Gujral, Manmohan Singh). A minister who is not an MP must become one within **6 months**.
Size (91st Amdt 2003)	Council ≤ **15% of the strength of Lok Sabha**; in a State ≤ 15% of the Assembly, **minimum 12** (Art 164(1A)); defectors disqualified from ministership.
Responsibility	**Collective** to Lok Sabha (Art 75(3)); **individual** to the President (pleasure, but at PM's advice); Art 78: PM must **communicate** all decisions to the President.
Role of the PM	'Keystone of the Cabinet arch' (Lord Morley); 'first among equals'; chairs the Cabinet, NITI Aayog and Cabinet committees (Appointments, Economic Affairs, Security...), links the President and Council. Council ends with PM's resignation or death.
Cabinet system	Art 352 mentions 'Cabinet' (44th Amdt, 1978); **Cabinet Secretariat** under the Cabinet Secretary (top civil servant); **'Kitchen Cabinet'** is an informal inner circle. Council's advice is justiciable? No: **Art 74(2)** bars courts from inquiring what advice was given.

Parliamentary vs Presidential system

Feature	Parliamentary (India, UK)	Presidential (USA)
Executive and legislature	Fused: ministers are MPs	Separated
Head of State	Nominal President; real power with PM	President is both
Responsibility	To the legislature (no-confidence)	To the people; fixed term
Dissolution	Lower House can be dissolved	Not possible

ANDHRA PRADESH LINK

The Council of Ministers in a **State** follows the same rule (Art 163–164): ≤ 15% of the Assembly and minimum 12. **N.T. Rama Rao** (Telugu Desam, formed 1982) and the **Governor Ram Lal 1984 dismissal** episode show why the Governor and the majority test matter — the **Governor Ram Lal** dismissed NTR (Aug 1984); after the public uproar he was restored in 29 days (Sept 1984) and **Shankar Dayal Sharma** replaced Ram Lal. Every Chief Minister of AP and Telangana heads a Council whose size is capped by the 91st Amendment.

EXAM TRAPS

'Collective responsibility' is to the LOK SABHA, not to Parliament as a whole. Council of Ministers is NOT bound to resign when the Rajya Sabha defeats it. A person can be PM for 6 months without being an MP. Art 74(2): courts cannot inquire into the advice given by ministers to the President.